



Backblaze Policies

Terms of Service

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Backblaze Terms of Service

Effective Date: April 16, 2026

Introduction

Welcome to Backblaze. These Terms of Service ("*Terms*") are a legal agreement between you and Backblaze, Inc. ("*Backblaze*", "*we*", "*us*", or "*our*") and apply to your use

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of our website and products and services. Because Backblaze operates both a public website and subscription-based products, these Terms are structured in parts:

- **Part A – Website Terms of Use:** Applies when you visit or browse the Backblaze website (the "*Site*").
- **Part B – Service Terms of Use:** Applies when you create an account or use any Backblaze products or services, such as Backblaze Computer Backup or Backblaze B2 Cloud Storage (collectively, the "*Service(s)*").

By accessing the Backblaze Site or Service(s), creating an account, or using any other Backblaze products or services, you: (i) are indicating your acceptance of, and agreement to be legally bound by, all of the terms and conditions of these Terms; and (ii) consent to the



configured or disabled through your account settings or as described in our Privacy Notice. If you do not agree, you may not use our website or any products or services we offer.

The Site and Service(s) are not intended for children under 13. Backblaze does not knowingly collect personal information from children under 13. If we become aware that a child under 13 has created an account, we will terminate that account and delete any associated data.

IMPORTANT ARBITRATION DISCLAIMER; ARBITRATION AND WAIVER OF JURY TRIAL. THESE TERMS CONTAIN PROVISIONS FOR BINDING ARBITRATION AND WAIVER OF JURY TRIAL. YOUR ACCEPTANCE OF THESE TERMS, INCLUDING ALL APPLICABLE PARTS AND INCORPORATED DOCUMENTS AND MATERIALS, INCLUDES YOUR ACCEPTANCE OF AND AGREEMENT TO THESE PROVISIONS. WHEN ARBITRATION IS INVOKED FOR CLAIMS SUBJECT TO ARBITRATION, YOU AND BACKBLAZE WILL NOT HAVE THE RIGHT TO PURSUE THAT CLAIM IN COURT OR HAVE A JURY DECIDE THE CLAIM AND YOU WILL NOT HAVE THE RIGHT TO BRING OR PARTICIPATE IN ANY CLASS ACTION OR SIMILAR PROCEEDING IN COURT OR IN ARBITRATION.

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Part A: Website Terms of Use

This Part A governs over your use of the Site.

1. Use of the Site

You may use the Site only for lawful purposes and in accordance with these Terms. You agree not to interfere



Policy.

2. Intellectual Property

All content on the Site, including text, graphics, logos, images, and software, is the property of Backblaze or its licensors and is protected by intellectual property laws. All rights are reserved. You may not copy, reproduce, distribute, display, or create derivative works from content on the Site without our prior written consent.

3. Links to Third Parties

The Site may contain links to third-party websites or services that are not owned or controlled by Backblaze. Your interactions with any third-party site or service are solely between you and the applicable third party and are governed by their respective terms and privacy policies. We have no control over the contents of those sites or resources, and accept no responsibility for them or for any loss or damage that may arise from your use of them, and disclaim all warranty and liability as to the accuracy, completeness, suitability or utility thereof. If you decide to access any of the third-party websites linked to our website, you do so entirely at your own risk and subject to the terms and conditions of use for such websites or services.

4. Privacy and Security

Our collection and use of personal information through the Site is governed by our [Privacy Notice](#). Please review it carefully.

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provided “as is” and on an “as available” basis and may contain inaccuracies, and should not be relied on as professional advice. Backblaze makes no representations or warranties regarding the accuracy, completeness, or reliability of AI-generated or automated outputs. You are solely responsible for reviewing and evaluating any outputs and for all decisions, actions, and omissions taken in reliance thereon. Backblaze will not be liable for decisions or actions taken based on such outputs.

6. Disclaimers

The Site is provided “as is” and “as available” without warranties of any kind, express or implied, including warranties of merchantability, fitness for a particular purpose, or non-infringement. Without limitation to the foregoing, we provide no warranty or undertaking, and make no representation of any kind that the website will meet your requirements, achieve any intended results, be compatible, or work with any other software, applications, systems, or services, operate without interruption, meet any performance or reliability standards, or be error-free, or that any errors or defects can or will be corrected. Some jurisdictions do not allow the exclusion of certain warranties, so these exclusions may not apply to you.

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7. Limitation of Liability

To the fullest extent permitted by law, neither Backblaze nor any of our service providers will be liable for any direct, indirect, incidental, consequential, special,



Backblaze's or any of our service provider's aggregate liability to you under these Terms exceed one hundred U.S. dollars (\$100). The foregoing limitations will apply whether such damages arise out of breach of contract, tort (including negligence), or otherwise and regardless of whether such damages were foreseeable or we were advised of the possibility of such damages. Some jurisdictions do not allow certain limitations of liability so some or all of the above limitations of liability may not apply to you.

8. Indemnification

You agree to indemnify and hold harmless Backblaze and its officers, directors, employees, successors, assigns, and agents from any claims, damages, liabilities, losses, actions, judgments, settlements, awards, penalties, fines, costs, and expenses (including reasonable attorneys' fees) arising out of or related to (a) your use of the Site, or (b) your violation of these Terms applicable to your use of the Site.

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9. Governing Law and Dispute Resolution; Limitations to Bring a Claim.

These Terms are governed by the laws of the State of California, without regard to conflict of laws principles. Any disputes you have concerning the Site or these Terms will be resolved pursuant to Section 21 of Part B to these Terms.

Any cause of action you may have arising out of or relating to these Terms, our Privacy Notice, or the Site must be commenced within one (1) year after the cause



10. Entire Agreement and Order of Precedence.

Any order form, these Terms and our policies cited in these Terms constitute the entire agreement between you and us. In the event of any conflict or inconsistency among the following documents, the order of precedence shall be: (a) Partner, Reseller, or MSP Addendum (if applicable), (b) any applicable order forms and (c) these Terms. If any provision of these Terms is found to be unenforceable, the remaining provisions of these Terms will remain in full force and effect.

11. Notices.

Any notice between you and us will be in writing and will be given by email (with delivery confirmation) by Backblaze. If you are located outside the United States, you may also provide a physical address for notices. If you do not provide a physical address, we will send notices to the address on file with us. If you provide a physical address, we will send notices to that address by United States certified mail, return receipt requested, postage prepaid. For you, such notices will be sent to the addresses you provided when you set up your account or if applicable, on the order form. For us, 2261 Market Street, STE 81006, Attn: Legal Department, San Francisco, CA 94114 or any updated address provided by Backblaze, legal@backblaze.com or as changed through written notice to the other party.

12. Assignment and Waiver.

You may not assign these Terms without our prior written consent of, which shall not be unreasonably withheld. This approval requirement shall not apply in connection with a reorganization, merger or the sale of all or substantially all of your assets or stock or in connection with an assignment to your affiliate. Subject



13. Modifications.

We may update these Terms from time to time in our sole discretion without notice to you. The “Effective Date” noted here reflects the latest version. Your continued use of the Site after changes take effect constitutes your acceptance.

14. Contact Us

If you have any questions or concerns about these Terms, please contact us at:

Backblaze, Inc.

2261 Market Street, STE 81006

San Francisco, CA 94114

Email: legal@backblaze.com

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Part B: Service Terms of Use

This Part B governs over your access and use of the Service(s).

1. Use of the Service(s)

To access our Service(s), you will need to create an account by providing a valid email address and password. Backblaze requires multi-factor authentication (MFA) on all accounts, except where authentication is managed through a third-party identity provider, in which case the authentication requirements of that provider will apply. You are solely responsible for accurately maintaining and safeguarding



account. For security reasons, we are not obligated to provide you access to your account or your files if you are unable to provide the appropriate account credentials.

Where SMS-based authentication is available for your account type, by providing a phone number in connection with your account, you consent to receiving automated text messages and phone calls from Backblaze (or our service providers) for account verification, authentication, and security alerts. Message and data rates may apply. You may opt out of SMS-based authentication at any time by selecting an alternative authentication method in your account settings. Message frequency varies based on your account activity.

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You will act reasonably in preventing any unauthorized access to or use of Service(s), and notify us immediately of any such unauthorized access or use. You will not make any Service(s) available to, or use any Service(s) for the benefit of, anyone other than you, your authorized users, or your organization, unless expressly stated otherwise in an applicable order form or as otherwise agreed to in writing with Backblaze. You are responsible for procuring all services, hardware, desktop software, and other technology necessary to access and use the Service(s) (including, without limitation, Internet access services, data network services, and compliant web browsers) and ensuring that you are maintaining up to date versions of the Service(s) as they are introduced by us from time to time.

You may use the Service(s) only for the number of users, computers, and/or drives expressly permitted under



reserves the right to enforce these limits and to suspend or terminate any account that exceeds its authorized scope.

If your usage of the Service(s) materially exceeds typical usage patterns or otherwise places an undue burden on Backblaze's infrastructure, we may, in our sole discretion, require you to modify your configuration, reduce your data volume, or take other actions necessary to ensure system stability. Backblaze may also suspend, throttle, or terminate service to any account that continues to consume disproportionate resources after notice.

Some aspects or offerings within the Service(s) may be described as "unlimited" or suggest that any part of the Service(s) can be used without limitations or conditions.

However, "unlimited" or any referral or suggestion to such strictly refers to you or any authorized accessing and/or using the Service(s) under those circumstances in the ordinary and intended use of the applicable Service(s), as specified in our product descriptions. For example, Backblaze Computer Backup is designed for backup of individual computers and directly attached external drives. "Unlimited" does not permit use in ways inconsistent with the Service's intended design, including, but not limited to, use with servers, data centers, shared storage systems, or other enterprise infrastructure not expressly covered by the Service(s), as well as using the Service(s) for any illegal or commercial purposes or any other use in violation of these Terms or otherwise outside of the ordinary scope for such use of the Service(s). If we believe you are abusing or using any aspect of the Service(s) not in accordance with this paragraph, we can, in our sole

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without prior notice where such misuse (a) violates applicable law, (b) violates the Acceptable Use Policy, or (c) poses a risk to the security, integrity, or performance of the Service(s).

Backblaze software functions best when running the most current release. We regularly deploy updates and will make reasonable efforts to automatically install them to maintain security, reliability, and compatibility with the Service(s). If an automatic update cannot be completed, we will display an alert in your account console identifying the affected computer. You are responsible for keeping your installation reasonably up to date to ensure continued functionality.

We may restrict, disable, suspend, or terminate access to the Service(s) on any device running outdated or unsupported versions of the Backblaze software or

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operating system. Devices using unsupported or outdated operating systems may be blocked from installing or running new versions of the Backblaze software. To maintain full functionality and continued backups, you are responsible for keeping your operating system and Backblaze software updated to versions currently supported by Backblaze.

Devices that fail to update to a supported version may be unable to complete backups or restore data, and Backblaze is not responsible for any resulting data loss or service interruption. If you encounter issues updating your software, you should manually install the latest version or contact Backblaze Support for assistance.

2. Your Files



including storing, displaying, reproducing, and distributing the Files. This permission also extends to trusted third parties we work with to offer the Service(s). We can disclose your files only in the limited circumstances described in our [Privacy Notice](#).

You are solely responsible for the accuracy, quality, and legality of the Files and the means by which you acquired the Files. You are solely responsible for the development, content, and use of the Files you upload to the Service(s) and you assume all risks associated with them, including intellectual property or other legal claims. You represent and warrant that you have all necessary rights to store, use and, if applicable, publicize the Files, and that doing so does not conflict with, violate or misappropriate any third party legal rights, conflict with licenses you have granted to others, violate any applicable law or regulations, or violate any of our Terms or applicable Backblaze policies.

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Our Service(s) may allow you to share the Files with others, which is in your sole control and discretion. You are responsible for taking appropriate steps to secure and protect your Files, such as setting up and maintaining the proper configuration and use of our Service(s), as well as using encryption to protect your Files from unauthorized access when and if applicable. You should not include or provide any protected health information or personally identifying information in the names of your Files.

Please be careful about what Files you choose to share. Backblaze does not actively monitor Files you upload, download, or share. However, we reserve the right, in our sole discretion, to remove Files and/or suspend or



If we are required by a licensor or regulatory authority to remove or block access to your Files, or if we receive notice that your Files may violate applicable law or third-party rights, we may notify you unless we are legally prohibited from doing so. Upon receipt of such notice, you must promptly remove the relevant Files from the Service(s). If you fail to do so, we may block access to, disable, or remove the applicable Files and/or suspend or terminate your access to the Service(s), with or without notice, until the matter is resolved. We assume no liability for Files you store on our Service(s).

3. Your Responsibilities

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Your access and use of our Service(s) must comply with these Terms and applicable Backblaze policies, as well as applicable law, including but not limited to sanctions and export control laws and regulations administered by the Office of Foreign Assets Control (OFAC) and the Export Administration Regulations (EAR), privacy laws, intellectual property laws, and other third-party rights. You are responsible for your organization's and your authorized users' compliance with the same. Authorized users may include your employees, consultants, contractors, agents, and third parties with which you transact business. You are responsible for ensuring that your authorized users comply with these Terms and are made aware of any obligations applicable to their use of the Service(s).

You are responsible for responding directly to requests for information about your users' use of the Service(s) from law enforcement or another third party. Such requests may include, but are not limited to, search



We will make commercially reasonable efforts, unless we are prohibited from doing so by law or court order, to promptly notify you of our receipt of such requests; comply with your commercially reasonable requests regarding your efforts to oppose such requests; and provide you with information or tools required for you to respond to such requests (if you are otherwise unable to obtain the information). If you fail to promptly respond to such requests, we may, but will not be obligated, to do so.

If you create or administer a group account, you represent that you have authority to accept these Terms on behalf of all members and agree that all such members are bound by these Terms. You are responsible for ensuring that all members of your group comply with these Terms. If you use the Service(s) on behalf of a business, organization, or other entity, you must use the Service(s) in compliance with that entity's policies and procedures. If your account is part of an organization managed by a group administrator, that administrator may be able to access, monitor, restrict, suspend, delete, or terminate your account and/or Files stored within your account, depending on the specific services and configuration in place. Backblaze is not responsible for the actions or omissions of any group administrator, and any disputes between you and your organization, or between an organization and its individual users, regarding access to or control of an account are solely between those parties.

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4. Acceptable Use



with the AUP. Backblaze may suspend or terminate your account for violations of the AUP as described therein.

5. Our Rights

We reserve the right to update the Service(s) from time to time. We will provide commercially reasonable advance notice to you if we believe we are making a material change to the Service(s). In our sole discretion, we may, at any time change, eliminate, or restrict access to our Service(s), and modify, suspend, or terminate a user account upon reasonable notice to you or any user.

Notwithstanding the foregoing, we may suspend, restrict, or terminate access to the Service(s) immediately and without prior notice where we reasonably believe that

Products (a) your use violates applicable law, **Solutions** (b) your use violates **Pricing** these Terms or the Acceptable Use Policy, or (c) such **Resources** **Why Backblaze** **Cc** action is necessary to prevent harm to the security, integrity, or availability of the Service(s) or third parties. If you stop paying for our Service(s) or violate any of our Terms or applicable policies, we reserve the right to suspend or terminate your account and may delete your data. Backblaze is not liable for any damages as a result of these actions.

6. Beta and Trial Services

We sometimes release products and features that we are still testing and evaluating, which is called a "Beta Service." Beta Service may not be as reliable as Backblaze's other Service(s) and we therefore do not warrant or represent that the Beta Service will achieve any intended result or perform at a certain level. Beta



any Beta Service, you agree not to disclose any information about such services to anyone else without our prior written authorization. Unless otherwise stated, any Beta Service trial period will expire upon the earlier of the trial end date or the date that a version of the Beta Service becomes generally available without the applicable Beta Service designation. We may discontinue Beta Services at any time in our sole discretion without notice to you and may never make them generally available. We will have no liability for any harm or damage arising out of or in connection with a Beta Service.

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Backblaze offers a free fifteen (15)-day trial for our new Computer Backup customers. Backblaze reserves the right to modify, shorten, extend, or discontinue any trial period at any time in its sole discretion, with or without notice. Trial registration and payment requirements, including whether payment information is required at the time of sign-up, are as specified on the applicable sign-up page or the [Payments and Refunds](#) page. After the trial period, you will need to provide payment information to continue use of the Service(s). If you do not provide payment after the trial period, we will remove any data you provided and terminate your account.

7. Other Sites and Services

The Service(s) may contain links to websites, services, and advertisements that we neither own nor control. We do not endorse or assume responsibility for any third-party sites, information, materials, products, or services. Your interactions with any third-party site or service are



or for any loss or damage that may arise from your use of them, and disclaim all warranty and liability as to the accuracy, completeness, suitability or utility thereof. If you decide to access any of the third-party websites linked to our website, you do so entirely at your own risk and subject to the terms and conditions of use for such websites or services.

8. Privacy and Security

Our [Privacy Notice](#) and [Data Processing Agreement](#) (“DPA”) govern our collection and use of your personal information during your access and use of the Service(s), with the DPA being expressly incorporated into these Terms. Please review those provisions, too. You represent to us that you have provided all necessary privacy notices and obtained all necessary consents for any information or data you provide into or through the Service(s). You are responsible for the storage and use of your files in accordance with applicable data privacy laws, as may be further set forth in the DPA.

We take the security of the Service(s) very seriously. We will maintain administrative, physical, and technical safeguards reasonably designed to protect the security, confidentiality and integrity of the Files in accordance with industry standard security requirements. Files stored using Backblaze Computer Backup are encrypted prior to being sent to us. You will be provided the ability to encrypt data on the B2 Cloud Storage Service using a Backblaze-managed key or you may provide your own encryption key. You are required to implement multi-factor authentication (MFA) on your account(s). For

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We strive to keep our Service(s) available for you. Details of our service availability can be found in the [Backblaze Service Level Agreement \("SLA"\)](#), which is incorporated into these Terms. We also offer customer support options as detailed in the [Backblaze Customer Support Plans](#) page. Your sole remedy for any Backblaze failure to meet the requirements under the SLA for the Covered Services (as defined in the SLA) shall be limited to your right to receive the credits set forth in the SLA, provided that you perform all the necessary steps to receive such credits.

10. Fees and Payment; Transition of Services

Please see [Payments and Refunds](#) for how we charge

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fees and payment terms. All payments are non-refundable unless otherwise noted in [Payments and Refunds](#) or otherwise agreed in a separate written agreement or an order form.

11. Data Portability and Switching

Where applicable law provides you with a right to switch data processing service providers, you may initiate the switching process by providing written notice to Backblaze in accordance with the notice period required under such law. Following receipt of such notice, Backblaze will use commercially reasonable efforts to facilitate the transfer of your exportable data within the timeframes required by applicable law. Backblaze will not charge fees that are directly and solely attributable to the switching process, as further specified in the [Payments and Refunds](#) page, an order form, or a



cancellation fees, or fees arising from the termination of any order form or subscription, remain in effect and are unaffected by this provision.

12. Subscription Term and Renewal

These Terms commence on the earlier of the date you first accept them, when you create an account, or otherwise when you first access the Service(s), and continue until all subscriptions under these Terms have expired or have been terminated, or, for usage-based Service(s), until your account is terminated in accordance with these Terms.

Subscription-Based Services. For Services purchased on a subscription basis (such as Backblaze Computer Backup), except for any trials or beta tests or as agreed in an order form or a separate agreement, subscriptions will automatically renew at the then-current list price for successive periods equal to the expiring subscription term (e.g., a one-year subscription renews for one year) unless you cancel your subscription prior to the renewal date through your account or as otherwise described in the Cancellation and Account Deletion section of these Terms.

Usage-Based Services. For Services billed on a usage basis (such as Backblaze B2 Cloud Storage), your account will remain active and fees will continue to accrue based on your usage at the then-current rates until you remove all data from the Service and close your account as described in the Cancellation and Account Deletion section of these Terms, or your account is otherwise terminated in accordance with these Terms.

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a. To cancel Backblaze Computer Backup, please visit: [How to Cancel or Delete your Backblaze Computer Backup Account.](#)

b. To cancel Backblaze B2 Cloud Storage, please visit: [How to Cancel your Backblaze B2 Cloud Storage Account.](#)

Please visit our [help center](#) if assistance is needed to cancel your Service(s) and delete your account.

When you cancel your Service(s), we will no longer bill you for the Backblaze account you have canceled except for past due amounts, and any applicable early termination fees, cancellation fees, or other fees. Your account information will remain accessible unless you delete your account. When you delete your account, your account information (email address, for example) will be removed from our active system and you will no longer be able to access your account, including any Files that remain in your account upon deletion.

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14. Termination

For violations of these Terms or our Acceptable Use Policy, where practicable, we will provide reasonable notice and an opportunity to cure. However, we reserve the right to suspend or terminate immediately and without prior notice where we reasonably believe your use (a) violates applicable law, (b) poses a risk to the security or integrity of our Service(s) or systems, or (c) exposes Backblaze or our users to legal liability.

Either party may terminate the Service(s), and thereby these Terms, if: (a) one party is in breach and fails to cure such breach within thirty (30) days after receiving



the benefit of creditors.

15. Intellectual Property Rights and Feedback

You own all intellectual property rights in your Files and grant us a license to process your Files with our Service(s). We own all intellectual property rights in the Service(s), our trademarks and trade names. No additional rights are granted to you other than as expressly set forth in these Terms.

Backblaze's Copyright Policy complies with the Digital Millennium Copyright Act. For more information, see [Backblaze Copyright and DMCA Policy](#).

If you provide us with any feedback to our Service(s), you grant to us a worldwide, perpetual, irrevocable, royalty-free license to use and incorporate into our Service(s) any feedback provided by you or your users relating to the operation of our Service(s).

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16. Confidentiality

You agree to keep any confidential information we share with you confidential, including but not limited to our non-public product information and price lists. You will use the same degree of care, but no less than a reasonable degree of care, that you use to protect the confidentiality of your own confidential information of like kind and not use any confidential information for any purpose outside the scope of these Terms.

17. Disclaimers



for a particular purpose, and non-infringement. Without limitation to the foregoing, we provide no warranty or undertaking, and make no representation of any kind that the Service(s) will meet your requirements, achieve any intended results, be compatible, or work with any other software, applications, systems, or services, operate without interruption, meet any performance or reliability standards, or be error-free, or that any errors or defects can or will be corrected.

18. Indemnification

You agree to indemnify, defend, and hold us, our service providers, and our affiliates and each of their respective officers, directors, employees and agents, harmless from and against all liabilities, damages, fines, penalties, awards, settlements, deficiencies, actions, proceedings, claims, demands, expenses and costs (including settlement costs and reasonable attorneys' fees) arising out of any claim by a third party against us, our service providers, or our affiliates regarding (a) the Files stored with us by you or your users, (b) your domains, or (c) your or your users' use of the Service(s) in violation of these Terms.

19. Limitation of Liability

To the fullest extent allowed by law, neither Backblaze nor our service providers shall be liable for any indirect, incidental, special, consequential, or punitive damages, or any loss of profits or revenues, whether incurred directly or indirectly, or any loss of data, use, goodwill, or other intangible losses resulting from (a) your access to, use of, inability to access, or inability to use the

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limitations will apply whether such damages arise out of breach of contract, tort (including negligence), or otherwise and regardless of whether such damages were foreseeable or we were advised of the possibility of such damages. Some jurisdictions do not allow certain limitations of liability so some or all of the above limitations of liability may not apply to you. (Some states don't allow these limitations, so this provision might not apply to you.) Our total aggregate liability to you under these Terms shall not exceed the total amount paid by you and your affiliates of the Service(s) for the twelve (12) months preceding the first incident out of which the liability arose.

20. Artificial Intelligence and Machine Learning

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Certain features of the Service(s) may incorporate automated, machine learning, or artificial intelligence-enabled functionality. Any resulting outputs, alerts, recommendations, or other results may be inaccurate, incomplete, unavailable, or not current. Such features are provided on an 'as is' and 'as available' basis, and Backblaze makes no representations or warranties regarding the accuracy, completeness, reliability, or suitability of any such outputs. Customer is solely responsible for reviewing and evaluating any outputs and for all decisions, actions, and omissions taken in reliance on the Service(s). Backblaze will not be liable for decisions or actions taken based on such outputs.

21. Mutual Arbitration Agreement



use or disclosure of information about you or us, disputes concerning communications involving telephones, cell phones, automatic dialing systems, artificial or prerecorded voice messages, text messages, emails, or facsimile machines, such as alleged violations of the Telephone Consumer Protection Act and other statutes or regulations involving telemarketing, and the claim is not resolved through the Pre-Arbitration Dispute Resolution process described below, you and we each agree to resolve such disputes through an individual binding arbitration or an individual action in small claims court. CLASS ARBITRATIONS AND CLASS ACTIONS ARE NOT PERMITTED, AND YOUR CLAIM MAY NOT BE CONSOLIDATED WITH ANY OTHER PERSON'S CLAIM. You and we agree that the U.S. Federal Arbitration Act governs the interpretation and enforcement of this provision and that you and we are each waiving the right to a trial by jury or to participate in a class action. This Section shall survive termination of your use of the Service(s) or any user account that you may have.

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Pre-Arbitration Dispute Resolution: Before commencing arbitration, the parties must first engage in a good faith effort to resolve any Claim by providing a written notice of dispute and participating in an informal dispute resolution conference. The party asserting the Claim must send a written "Notice of Pre-Arbitration Dispute" to the other party containing: the claimant's name, telephone number, mailing address, and email address; a factual description of the nature and basis of the dispute, including the basis and amount of any claimed damages; the amount sought for resolution; and the claimant's original personal signature (digital, electronic, copied, or facsimile signatures are not



within one year after your Claim accrued. Otherwise, you waive the Claim.

Within sixty (60) days of receipt of the Notice, unless an extension is mutually agreed, the parties will participate in an informal dispute resolution conference by telephone or videoconference to discuss the Claim and attempt to reach a resolution, including through mediation if mutually desired. Both you and a Backblaze representative must personally participate unless you and we agree otherwise in writing, though counsel may also attend. Multiple customers may not participate in the same informal dispute resolution conference unless mutually agreed by all parties including Backblaze.

Engaging in an informal dispute resolution conference is a requirement that must be fulfilled before commencing

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arbitration. The parties agree that the statute of limitations and any applicable contractual limitations period shall be tolled from the time when a fully complete Notice of Pre-Arbitration Dispute Resolution is received until the completion of the informal dispute resolution conference (or if the parties agree to mediate, until the completion of the mediation). Nothing in this Section prohibits the parties from engaging in informal communications to resolve the Claim at any time.

If you are initiating the Claim, the Notice of Pre-Arbitration Dispute must be clearly marked "Notice of Pre-Arbitration Dispute" and delivered to Backblaze at the following:

Attn: Notice of Pre-Arbitration Dispute
Backblaze Legal Department
2261 Market Street, STE 81006



Pre-Arbitration Dispute to your most recent mailing address or email address on file. If any offers of settlement are discussed by the parties, such information about the proposed settlement will not be disclosed in the arbitration.

The Pre-Arbitration Dispute Resolution and informal dispute resolution conference requirements are essential in order to give the parties a meaningful chance to resolve Claims informally. If any aspect of these requirements has not been met, the parties agree that a court can enjoin the filing or prosecution of an arbitration, and, unless prohibited by law, no arbitration provider shall either accept or administer the arbitration or assess fees in connection with such an arbitration.

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Any such arbitration shall be administered by the American Arbitration Association and be conducted in accordance with its Consumer Arbitration Rules (the "Rules"). Contact information for the American Arbitration Association, as well as copies of the Rules and applicable forms, are available at www.adr.org or by calling the American Arbitration Association at (800) 778-7879. In circumstances in which the Rules provide for an in-person hearing, such hearing will, at your request, take place in the U.S. county (or parish) of your residence, or otherwise in the City and County of San Francisco, California. We will pay the costs that are required to be paid by us under the arbitration rules and procedures, and subject to applicable law, unless the arbitrator finds the arbitration was frivolous or brought for an improper purpose.

22. Governing Law and Jurisdiction



located in San Francisco County, California or in the United States District Court for the Northern District of California.

23. Entire Agreement and Order of Precedence

Any order form, these Terms and our policies cited in these Terms constitute the entire agreement between you and us. In the event of any conflict or inconsistency among the following documents, the order of precedence shall be: (a) a Partner, Reseller, or MSP Addendum (if applicable), (b) the applicable order forms, (c) the policies incorporated by reference herein, including the Acceptable Use Policy, Privacy Notice, Data Processing Agreements, and Service Legal Agreement, and (d) these Terms. If any provision of these Terms is found to be unenforceable, the remaining provisions of these Terms will remain in full force and effect.

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24. Notices

Any notice between you and us will be in writing and will be given by email (with delivery confirmation) or by United States certified mail, return receipt requested, postage prepaid. For you, such notices will be sent to the addresses you provided when you set up your account or if applicable, on the order form. For us, Backblaze, Inc., 2261 Market Street, STE 81006, Attn: Legal Department, San Francisco, CA 94114 or any updated address provided by Backblaze, legal@backblaze.com or as changed through written notice to the other party.



connection with a reorganization, merger or the sale of all or substantially all of your assets or stock or in connection with an assignment to your affiliate. Subject to the foregoing, these Terms shall be binding upon and inure to the benefit of the parties' successors in interest. No waiver of any provision of these Terms shall be a further or continuing waiver of that term.

26. Modification

These Terms may be modified from time to time. The date of the most recent revisions will always be at <https://www.backblaze.com/company/policy/terms-of-service>. If we make changes that we believe will substantially alter your rights or otherwise materially alters these Terms, we will notify you in accordance with applicable law. If you continue to use Backblaze after modifications of the Terms, by doing so you agree to accept such modifications.

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27. Contact

We welcome all questions, concerns, and feedback you might have about these terms. If you have suggestions for us, let us know at legal@backblaze.com.

Previous Version(s):

- [April 5, 2016](#)
- [February 12, 2020](#)
- [February 12, 2021](#)



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